



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

November 17, 2022

### **POLICE COMMISSIONER'S PENALTY DEPARTMENT**

**Re:** CCRB Case No. 202105563 regarding Police Officer Aaron Husbands, Tax No. 965752 (DADS No. 2022-26977)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter, including body-worn camera video evidence, and has determined that Police Officer Husbands' actions in this matter did not rise to the level of actionable misconduct.

Police Officer Husbands was involved in an extended struggle to place an individual in handcuffs, after the individual had twice been tased and had continued to resist multiple officers' efforts to control him. Almost a year after the incident, Officer Husbands was interviewed by CCRB investigators, and he had a limited recollection of the details sought by CCRB. What was clear in the body-worn camera video was that the individual that officers were trying to place into the police vehicle was not allowing the officers to do so by physically resisting their efforts. Officer Husbands' hand movement at issue here did not lead to a strike against the individual nor did it appear to have any effect on the situation. In any case, the active resistance being demonstrated by the individual who was trying to prevent officers from controlling him would have clearly justified an officer to have utilized a measure of force, beyond the mere threat of force which CCRB concluded that Officer Husbands exhibited here.

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Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Husbands will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Threat of Force).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', written over the printed name.

Lourdes Soto  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office